

2019 P L C (C.S.) 717

[Lahore High Court (Bahawalpur Bench)]

Before Jawad Hassan, J

MUHAMMAD SALAH UD DIN and others

Versus

The ISLAMIA UNIVERSITY OF BAHAWALPUR and others

W.P. No.4639 of 2017, decided on 25th September, 2018.

(a) Islamia University of Bahawalpur Act (IV of 1975)---

---Ss. 11-A, 24 & 25---Islamia University Bahawalpur Officers (Appointment) Statutes, 1977, Clause 4 (2)---Islamia University Bahawalpur Ministerial Establishment (Recruitment) Statutes, 1975, Art. 5---Appointment against the post of Deputy Librarian---Petitioners were recommended for appointment against the posts of Deputy Librarian by the Selection Board but Board observed that decision had not been obtained from Syndicate with regard to method of recruitment and posts were re-advertised---Validity---University had streamlined the process of recruitment and petitioners had also applied for the same---Petitioners had filed their request to the Vice-Chancellor and Syndicate---Vice-Chancellor was also in the Syndicate which had decided the matter---Vice-Chancellor could not review its own orders being also member of the Syndicate---Petitioners had challenged the impugned decision before Chancellor---Chancellor was directed by the High Court to look into the matter and after affording opportunity of personal hearing to all the concerned decide the matter in accordance with law---Constitutional petition was disposed of in circumstances.

Usman Ghani and others v. Islamia University and others 2012 PLC (C.S.) 830 and Shaukat Khan v. Assistant Political Agency Landi Kotal Khyber Agency and others PLD 2002 SC 526 rel.

(b) Constitution of Pakistan---

---Art. 199---Constitutional petition---Maintainability---Alternate remedy---Constitutional petition was not maintainable in presence of alternate remedy.

Shaukat Khan v. Assistant Political Agency Landi Kotal Khyber Agency and others PLD 2002 SC 526 rel.

Samina Qureshi for Petitioners.

Bilal Ahmad Qazi for Respondents.

ORDER

JAWAD HASSAN, J.----Through the instant petition, filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the "Constitution"), the Petitioners have challenged the validity of decision dated 21.05.2016 regarding re-advertisement of the post of Deputy Librarian. They also sought a direction to the Respondents for their appointments against the said post.

2. Brief facts of the case are that the Petitioners are working as Assistant Librarian in the Respondents/Islamia University of Bahawalpur (the "University") since last 26 years. In pursuance of an advertisement dated 05.05.2010 the Petitioners applied for the post of Deputy Librarian. Total 38 applications were submitted and only 21 candidates were found eligible and they were called for interview including the Petitioners. Resultantly, 9 candidates were found eligible and recommended by the Selection Board in its meeting held on 19/20.05.2016 but the said Board observed that the posts advertised were against the Clause 4(2) of the Islamia University Bahawalpur, Officers Appointment Statutes, 1977 (the "1977 Statute") because the matter of Deputy Librarian was to be decided by the Syndicate whether the post of Deputy Librarian should be filled by the "initial recruitment" or "from in-house candidates". Thereafter, the matter was referred to the Syndicate which through the impugned meeting observed that the Selection Board did not obtained the decision regarding the method of recruitment for the said post from the Syndicate and hence they have to be advertised the posts after seeking approval from the Syndicate regarding the method of recruitment. The posts were advertised again on 30.04.2017 in which the Petitioners applied.

3. Before invoking the constitutional jurisdiction of this Court the Petitioners had already filed a request to review the decision of the Syndicate dated 21.05.2016 to the V.C./Chairman of Syndicate (Annexure-A1) on 18.12.2016 and also filed Appeal under section 11-A of the Act to the Chancellor against the decision dated 25.01.2017. The Petitioners also got interim relief from this Court on 07.06.2017.

4. Learned counsel for the Petitioners inter alia contended that the Syndicate has already held the method of recruitment in its advertisement in May, 2010; that the case of the Petitioners is similar to the case of the Project Directors which has been allowed in their favour by this Court in W.P. No.5258/2016 and seeks similar treatment; that a discriminatory attitude is being adopted towards the case of the Petitioners, as such there is clear violation of the Article 25 of the Constitution.

5. On the other hand, the Respondents filed report and parawise comments denying the claim of the Petitioners and also raised certain objections regarding maintainability of the petition.

6. Learned counsel for the Respondents contended that the matter of the Petitioners is totally different from the Projector Directors, as such the same relief cannot be afforded to the Petitioners; that the decision of the Syndicate date 21.05.2016 was challenged by the Petitioners in June 2017 after one year, as such principle of laches applies to the case of the Petitioners.

7. I have heard the arguments and perused the record.

8. From the perusal of the record it transpired that the Petitioners have challenged the decision of the Syndicate dated 21.05.2016 in June 2017 by filing the petition. In order to examine the legality of the impugned decision of Syndicate and whether the Selection Board needs the approval of the Syndicate for the appointment on the said posts, relevant provisions of the Act is required to be discussed here. The Syndicate is established under Section 24 of the Act and Syndicate is defined under Section 2(xxi) of the Act. Section 25 of the Act states that the Syndicate shall be the executive body of the University and shall, subject to the provisions of this Act, and the Statutes, take effective measures to raise the standards of teaching, research and publication and other academic pursuits and exercise general supervision over the affairs and management of the property of the University. The Section 25(s) of the Act states that the Syndicate has the power to appoint University teachers and other officers on the recommendation of the Selection Board for teaching and other posts.

9. The Selection Board is established under Article 6 of the First Statute of the University in the Schedule (the "First Statute") and functions under Article 7 of the First Statute. There is also Selection Committee which is established under Article 4 of the Islamia University of Bahawalpur Ministerial Establishment (Recruitment) Statutes, 1975 (the "1975 Statute"). The method of recruitment is given in Article 5 of the 1975 Statute. Article 4 of the 1975 Statutes states that Appointment of officers shall be made by the methods specified in column 4 of the Schedule. It is to be noted that the University has already streamlined the recruitment process of the Deputy Librarian through its meeting held on 10.01.2017 which post was advertised in newspaper on 30.06.2017 in which the Petitioners have already applied. Before approaching this Court the Petitioners have written to the V.C. as well as to the Governor against the impugned decision of the Syndicate. Section 11-A of the Act clearly states as under:

"Revisional powers of the Chancellor.---The Chancellor may, of his own motion or otherwise, call for and examine the record of any proceedings in which an order has been passed by any Authority for the purpose of satisfying himself as to the correctness, legality or propriety of any finding or order and may pass such orders as he may deem fit:

Provided that no order under this subsection shall be passed unless the person to be affected thereby is afforded an opportunity of being heard."

10. The word 'Authority' used in Section 11-A of the Act is defined under section 2 (3) as "Authority" means any of the Authorities of the University specified in section 21" which includes Syndicate and the Selection Board. Since the Petitioners have already filed their request to the V.C. and the Syndicate but the V.C. was in the Syndicate which decided the impugned decision because the Syndicate consists of V.C. under Section 24(i) of the Act, who cannot review its own orders, therefore, the Chancellor can look into the matter under Section 11-A of the Act. Reliance has been placed on the case titled Usman Ghani and others v. Islamia University and others (2012 PLC (C.S.) 830) in which this Court, in clear words has held as under:

"Petitioners, if aggrieved of any such order of the Authority, could have availed the

efficacious remedy of revision before the Chancellor of the University as contemplated by S.11-A of Islamia University of Bahawalpur Act, 1975.

11. Admittedly, alternate remedy to the Petitioners is available in the shape of revision before the Chancellor, as such this petition is not maintainable. In plethora of judgments the Hon'ble Supreme Court of Pakistan has held that where an alternate remedy is available, constitutional jurisdiction of this Court under Article 199 of the Constitution cannot be invoked. Reliance in this regard can be placed on the case titled Shaukat Khan v. Assistant Political Agency Landi Kotal Khyber Agency and others (PLD 2002 SC 526) in which it has been held that availability of remedy in procedural statute will normally oust the jurisdiction of this Court. "Where an alternate efficacious remedy available has not been availed by the Petitioner High Court in exercise of constitutional jurisdiction would not permit him to seek such relief through constitutional proceedings."

12. In this view of the situation, the Chancellor is issued direction to look into the matter and after affording opportunity of personal hearing to all the concerned including the Petitioners decide the matter strictly in accordance with law, the Act, First Statute, 1975 Statute and 1977 Statute within one month after receipt of certified copy of this order. The Petitioners shall resort to the Authority Concerned for Redressal of their grievance.

13. Disposed of accordingly.

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Order accordingly.